

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Liliana Manuel	Team: Squad #07	CCRB Case #: 201601612	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/26/2016 6:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/26/2017	Precinct: 43		
Date/Time CV Reported Mon, 02/29/2016 12:23 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/29/2016 12:23 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Manuel Cruz	1260	945627	NARCBBX
2. An officer			NARCBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Charles Hyland	00000	915928	NARCBBX
2. POF Xiomara Linton	27693	945426	NARCBBX
3. SGT Brian Query	05001	937315	NARCBBX
4. DT3 Daniel Baca	02975	934434	NARCBBX

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Manuel Cruz	Abuse: Detective Manuel Cruz entered and searched § 87(2)(b) in the Bronx.	A . Exonerated
B . DT3 Manuel Cruz	Discourtesy: Detective Manuel Cruz spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	C . Officer(s) Unidentified

Case Summary

On February 29, 2016, § 87(2)(b) filed this complaint with the CCRB via phone on behalf of herself and her § 87(2)(b) son, § 87(2)(b).

On February 26, 2016, at approximately 6:30 a.m., Det Manuel Cruz of Narcotics Borough Bronx and additional narcotics officers, executed a search warrant at § 87(2)(b)'s apartment, located at § 87(2)(b) in the Bronx (Board Review 01) (**Allegation A**). § 87(2)(b) and § 87(2)(b) § 87(2)(b) and § 87(2)(b) daughters, § 87(2)(b) and § 87(2)(b) respectively, were home at the time. During the search warrant execution, Det Cruz allegedly yelled at § 87(2)(b) "Get the fuck down," and later allegedly told her, "I don't want to fucking talk to you either," (**Allegation B**). An officer also allegedly addressed § 87(2)(b) as, "You piece of shit," (**Allegation C**).

None of the individuals inside the home were arrested as a result of this incident. None of the occupants sustained physical injuries; § 87(2)(b)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to participate in the mediation process.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
- As of March 22, 2016, § 87(2)(b) had not filed a Notice of Claim with regard to this incident (Board Review 06).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) and § 87(2)(b) (Board Review 03).
- Det Cruz has been a member of the NYPD for eight years and is listed as the subject of two prior allegations stemming from two cases, neither of which was substantiated. § 87(2)(g)

Potential Issues

- The two victims, § 87(2)(b) and § 87(2)(b) as well as a witness, § 87(2)(b) provided sworn statements to the CCRB. The only other civilian witness, § 87(2)(b) was § 87(2)(b) at the time of this incident, and was therefore not interviewed by the CCRB.
- Det Guy Gargano of Narcotics Borough Bronx was listed on the search warrant pre-execution plan as having been a part of the search warrant team (Board Review 05). He was interviewed at the CCRB on May 18, 2016, but denied having any involvement in the incident and claimed to have been executing a different search warrant in a separate precinct, as was reflected in his memo book (Board Review 10; 20).

Findings and Recommendations

Explanation of Subject Officer Identification

Det Cruz provided a supporting deposition to obtain the warrant for § 87(2)(b)'s residence, and he was the investigating officer on the case. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) stated that the officer who spoke discourteously to § 87(2)(b) was the first officer to enter the apartment, entered holding a shield, and was followed by a female officer. Det Cruz, who was assigned to first bunker, confirmed that he was the first officer to enter the apartment, was holding a shield, and was directly followed by PO Xiomara Linton, who is a female. § 87(2)(g)

§ 87(2)(b) provided a sworn statement to the CCRB on March 3, 2016, and stated that while he was in his bedroom alone, three officers, hereby referred to as PO1, PO2, and PO3, entered his bedroom (Board

Review 14). PO1, who was holding a shield, allegedly stated to § 87(2)(b) “You piece of shit,” and then handcuffed him. § 87(2)(b) was then brought into the living room.

All interviewed officers denied stating to § 87(2)(b) “You piece of shit,” and they could not recall who entered § 87(2)(b)’s room and handcuffed him. The search warrant pre-execution plan listed Det Cruz and Det Daniel Baca as the only bunkers, and all interviewed officers confirmed that only the bunkers carried ballistic shields (Board Review 05). As addressed in the potential issues section, the pre-execution plan falsely listed Det Gargano as having been part of the search warrant team when he was not even present at the location, § 87(2)(g). While Det Cruz was confirmed to have been the first bunker, Det Baca could not confirm whether he was assigned to a bunker, and his memo book did not list his assignment within the search warrant team (Board Review 21).

Det Baca did not recall having interacted with § 87(2)(b) and though Det Cruz acknowledged interacting with § 87(2)(b) later in the incident, he denied interacting with him in his bedroom, denied being present when he was handcuffed, and claimed that he was in a separate bedroom with § 87(2)(b) when § 87(2)(b) was taken into the living room by officers.

§ 87(2)(g) : § 87(2)(b) described PO1 as a male who was approximately 6’2” tall, but he was unable to describe him further. He described PO2 as a bald Hispanic male, who was approximately 5’7” tall. § 87(2)(b) stated that at the conclusion of the incident, PO2 apologized to him and told him “not to hate police officers.” Det Baca § 87(2)(b) has black hair (Board Review 09). Det Cruz and § 87(2)(b) confirmed that Det Cruz was the officer who apologized to § 87(2)(b) and told him that “not all officers are bad,” as § 87(2)(b) alleged PO2 to have done, however, Det Cruz § 87(2)(g) § 87(2)(b) has black hair (Board Review 08). § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)

Allegation A: Abuse of Authority – Detective Manuel Cruz entered and searched § 87(2)(b) in the Bronx.

It is undisputed that Det Cruz and other narcotics officers entered § 87(2)(b) in the Bronx, and conducted a search of the premises.

§ 87(2)(b) alleged that officers searched her kitchen cabinets and refrigerator, and in a locked box in her bedroom, among other places (Board Review 13). § 87(2)(b) alleged that officers searched in the living room closets, refrigerator, and her bedroom (Board Review 15). § 87(2)(b) alleged that officers looked in the hallway closets, § 87(2)(b)’s purse and wallet, and in the bedrooms (Board Review 14).

The entry and search was pursuant to no-knock search warrant § 87(2)(b), which was issued by the § 87(2)(b). The warrant allowed the officers to search for crack-cocaine, paraphernalia, and miscellaneous items (Board Review 01).

Officers are permitted to forcefully enter a premises and conduct a full and thorough search for contraband outlined in the search warrant, N.Y.S. Criminal Procedure Law, Section 690.50 (Board Review 04).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Exonerated**.

Allegation B: Discourtesy – Detective Manuel Cruz spoke discourteously to § 87(2)(b)

§ 87(2)(b) provided an unsworn phone statement to the CCRB on February 29, 2016, and a sworn statement to the CCRB on March 3, 2016 (Board Review 12; 13). In her sworn statement, she alleged that upon entering the apartment, an officer, identified as Det Cruz, immediately yelled at her, “Get the fuck down on the floor!” § 87(2)(b) slowly kneeled to the floor and then crawled toward § 87(2)(b)’s bedroom. Det Cruz repeatedly yelled at § 87(2)(b) to, “Get the fuck down on the floor.” She continued crawling into the bedroom, where she was then handcuffed. § 87(2)(b) told the officers that they had made a mistake and that she therefore did not want to talk to them. Det Cruz allegedly responded, “Fine. I don’t want to fucking talk to you either.” § 87(2)(b) did not make any allegations of officers speaking discourteously to her in her unsworn phone statement.

§ 87(2)(b) provided a sworn statement to the CCRB on March 3, 2016, and explained that while in the living room with § 87(2)(b) Det Cruz entered the apartment and told § 87(2)(b) “Get the fuck down,” (Board Review 15). § 87(2)(b) did not immediately get down to the ground, and instead went into § 87(2)(b)’s bedroom. § 87(2)(b) remained in the living room. She did not hear officers make any other discourteous statements.

§ 87(2)(b) stated that while in his bedroom, he heard people enter the apartment and state, "Get the fuck down!" § 87(2)(b) could not see who made the alleged statement, and did not hear any other discourteous statements made to the other occupants of the household.

Det Cruz was interviewed at the CCRB, and stated that upon entering the apartment, he saw § 87(2)(b) in a bedroom to the right of the living room (Board Review 16). Det Cruz immediately went towards her and told her to get onto the ground. § 87(2)(b) was screaming and remained standing, and Det Cruz told her to get to the ground approximately eight times before she finally complied. Other officers told her to get down as well. Though § 87(2)(b) was initially in compliance with getting to the ground, Det Cruz did not perceive her to be a threat, and stated that she was not combative but simply seemed confused. § 87(2)(b) was generally compliant for the rest of the incident. Det Cruz denied making the alleged statements and denied using any profanity during the incident. He confirmed that he was the main officer to interact with § 87(2)(b)

PO Linton was interviewed at the CCRB (Board Review 17). She was assigned to Det Cruz's security during the search warrant. § 87(2)(g). She did not hear him use any profanity.

Sergeant Brian Query and Det Baca were also interviewed at the CCRB (Board Review 18; 19). Sgt Query did not enter the apartment until the apartment was secured and the occupants were in handcuffs. Det Baca had very little recollection of the incident. Neither Det Baca nor Sgt Query heard Det Cruz make the alleged discourteous statements.

In certain stressful encounters, an officer may use limited profanity where the need to gain compliance or maintain control of an incident is present. NYPD v. Court, OATH Index 78667/03 (Board Review 11).

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” It is therefore recommended
that **Allegation B** be closed as **Unsubstantiated**.

Allegation C – Discourtesy: An officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that while in his bedroom, an officer entered his bedroom and stated to him, “You piece of shit.”

§ 87(2)(b) and § 87(2)(b) confirmed that they were not in § 87(2)(b)'s bedroom during the incident, and they did not know which officers entered his room. Though § 87(2)(b) later told § 87(2)(b) that an officer stated to him, "You piece of shit," neither § 87(2)(b) nor § 87(2)(b) claimed to have heard an officer make the alleged statement.

§ 87(2)(g) It is therefore recommended that **Allegation C** be closed as **Officer(s) Unidentified**.

Squad: 07

Investigator:	_____	<u>Liliana Manuel</u>	_____
	Signature	Print	Date

Squad Leader:	_____	<u>Diana P. Murray</u>	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date